EXPLAINER · A SPECIAL NOTE

Scrupulosity: when conscience will not rest

When people learn that I am a canon lawyer, the questions I receive most often are not about marriage or penalties. They are from people who cannot stop asking whether they have sinned, whether their last confession counted, whether a thought they did not want has cut them off from God. This page is for them. The law's part of the answer is short. The rest goes all the way down.

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If this is you

You confess the same sins again because you are not sure the last confession "took." You rehearse the wording of what you said in the confessional, afraid you left something out or softened it. You avoid communion for weeks because you cannot settle whether something was grave. You have thoughts you did not choose, about God or about other people, and you treat the fact that they appeared as proof that you consented to them. You read the three conditions for mortal sin and find that you can never be sure the second and third were absent, so you assume they were present. You search the internet for canon lawyers.

If you recognise yourself, two things are true at once. The first is that you are not alone and not bad: Ignatius of Loyola, Alphonsus Liguori, and Thérèse of Lisieux all went through this, and the Church's pastoral tradition has carried a settled set of rules for it since at least the sixteenth century. The second is that a canon lawyer is the wrong doctor. I will show you below what the law actually says, because knowing it will help. But the questions you are really asking are not legal, and the law itself, read honestly, keeps pointing you away from itself.

What the law asks of you, exactly

Here is the whole of the obligation. You are obliged to confess, in kind and number, all grave sins committed after baptism and not yet confessed, *of which you have knowledge after a diligent examination of conscience*. Confession of venial sins is recommended, not required. You are obliged to confess grave sins at least once a year. You are not to receive communion if you are *conscious* of grave sin, unless there is a grave reason and no opportunity to confess. cc. 988, 989, 916

Notice the words the law chose. "Knowledge." "Conscious." "Diligent," not exhaustive. The obligation attaches to what you know, after reasonable care, to be grave sin. It does not attach to what might have been one. It does not attach to a sin you forgot. It does not attach to a sin you confessed once already, however badly you think you phrased it. The Council of Trent, which fixed the shape of this sacrament,

said in so many words that sins which do not come to mind after diligent thought "are understood to be included as a whole in that same confession," and the Catechism repeats it: whoever strives to confess all the sins they can remember "undoubtedly places all of them before the divine mercy for pardon." A forgotten sin is a forgiven sin. There is nothing to go back for. Trent, sess. XIV, ch. 5; CCC 1456

Two further canons are written with you in mind. The confessor is "equally a judge and a physician," a minister of divine justice *and mercy*. And if he has no doubt about your disposition and you ask for absolution, it is "to be neither refused nor deferred." The law places the judgment of your disposition in his hands, not yours, precisely because yours is the one judgment you cannot make well about yourself. You may choose any approved confessor, and the seal binds him absolutely, in every circumstance, forever. cc. 978 §1, 980, 991, 983

One rule of law worth knowing: a doubtful law does not bind. The Church applies this to its own legislation, and the moral tradition applies the same principle to doubtful obligations in conscience. Where you genuinely cannot say whether something was a sin, you are not bound to treat it as one, and you are not bound to confess it as one. c. 14

Why a doubtful sin is not a mortal sin

Mortal sin has three conditions, and all three must be met together: grave matter, full knowledge, and deliberate consent, meaning a consent "sufficiently deliberate to be a personal choice." Only the first is about the act. The other two are about you, and they are claims, not observations. No one, not a priest, not a tribunal, not a website, can read them off the outside of an act. The Church herself refuses to: "we must entrust judgment of persons to the justice and mercy of God." CCC 1857, 1859, 1861

This is where the scrupulous mind turns the teaching inside out. It reasons: the matter was grave, so I must have known, so I must have consented. But the teaching says the opposite. Grave matter without full knowledge or without complete consent is, by definition, *venial*. And the Catechism lists what diminishes or removes imputability: ignorance, inadvertence, duress, fear, habit, inordinate attachments, "and other psychological or social factors." Anxiety is one of those factors. A compulsion is one of those factors. The very state that makes you unable to stop asking the question is, in the Church's own account, a reason the answer leans toward "no." CCC 1862, 1735, 2352

And a thought that arrives uninvited is not an act at all. It is a thing that happened to you. Sin needs a *human act*, which proceeds from knowledge and deliberate will; what passes through the mind before the will has moved is not one. The old confessors had a test that still works: if the thought disgusts you, that disgust is your will, and your will is against it. You did not consent. You suffered. ST I-II q. 1 a. 1; q. 6 a. 5

No one can see your soul. Including you.

Here the tradition says something the scrupulous rarely hear, and it comes from the same Council that defined justification. No one, Trent taught, can know "with the certainty of faith, which cannot be subject to error," that they are in the grace of God. The certainty you are trying to reach about yourself does not exist for anyone, saint or sinner. What the Church asks of you is not certainty but the ordinary, humble, moral confidence of someone who has done what was asked and leaves the rest to God. Trent, sess. VI, ch. 9 (DH 1533–1534)

The same chapter goes on. While no one may be certain of their own state, no one "ought to doubt of God's mercy, of the merit of Christ, and of the virtue and efficacy of the sacraments." Read those two sentences together and you will see what scrupulosity does: it reverses them. It demands certainty about the one thing Trent says is hidden, yourself, and it doubts the three things Trent says are not to be doubted: God's mercy, Christ's merit, and the sacraments. The scrupulous conscience is not too strict. It is pointed the wrong way.

On the sacraments in particular, the teaching could not be plainer. They confer grace by the rite itself, not by the fervour of the one receiving or the holiness of the one giving. A priest in mortal sin absolves validly. A distracted priest absolves validly. A priest who misheard you absolves validly. Your own imperfect sorrow does not void it, provided you rejected the sin and meant to turn back. The sacrament does not depend on your performance, which is the entire reason Christ gave it in that form. Trent, sess. VII, cann. 8, 12 (DH 1608, 1612); c. 987

Down to the foundation

Everything above rests on something further down, and I think the scrupulous person deserves to see it, because the real trouble is not with the law or even with the theology of sin. It is with God. The scrupulous imagination carries a picture of God, usually unexamined, and when you write that picture out it turns out to be a God who cannot exist.

That God *changes*: he was favourable yesterday and turned when you forgot a sin. But God is immutable; it is not a compliment paid to him, it is what the word means. He is not a creature who reacts. Nothing you do or fail to do alters him. What changes when you sin is you, and what changes when you are forgiven is you, and the love on the other side was the same before, during and after. Lateran IV (DH 800); ST I q. 9 a. 1; q. 19 a. 7

That God *waits*: he is watching for the moment of death, hoping to catch you between confessions. But God is not in time. He does not wait for anything. "To God, all moments of time are present in their immediacy." There is no gap between the sin and the mercy in which he could pounce, because there is no before and after in him at all. CCC 600; ST I q. 10

That God has *parts*: a justice that wants you condemned and a mercy that argues for you, with the outcome in doubt. But God is simple, which means his justice and his mercy are not two forces in him but one act, seen by us from two sides. There is no court in heaven where mercy pleads before justice. Thomas goes further: mercy belongs to God "most of all," because to lift another out of misery is the act of the one who has everything and lacks nothing. Anger, by contrast, is said of God only as a figure of speech.

ST I q. 3 a. 7; q. 21 a. 3; q. 20 a. 1 ad 2

That God is *divided against himself*: the Father wants to punish and the Son talks him out of it. But there is one divine will, and the sending of the Son was the Father's own doing: "God so loved the world that he gave his only Son." The Son did not change the Father's mind. He is the Father's mind, made visible. And the Spirit who was given to you at baptism is not a lodger who leaves when the house is untidy; a prayer of the Roman Missal calls the Holy Spirit himself "the forgiveness of all sins."

Jn 3:16; Lateran IV (DH 800); Florence (DH 1330–1331)

That God *must be earned back*: the repentance is your work, and if it is not good enough the door stays shut. But no one turns toward God without God first moving them to turn. The Second Council of Orange and Trent both say it: even the beginning of faith, even the first stirring of sorrow, is grace. The sorrow you are trying to manufacture to a sufficient standard is itself his gift, already given. You are not knocking on a locked door. You are being carried through an open one and worrying about the knock.

Orange II, can. 5 (DH 375); Trent, sess. VI, ch. 5 (DH 1525)

I have put each of these pictures of God, one by one, against the Church's defined teaching on who God is, and each one fails on its face: a God who changes, who acts at a moment in time, who is composed of competing attributes, who is bound by a rule about exact wording, who has a limit to his patience, or whose persons want different things. None of them is the God of the creed. The scrupulous person is not, as they fear, taking God too seriously. They are, without meaning to, worshipping a smaller one.

What to do

- **Take one confessor and obey him.** This is the rule every saint who suffered scruples eventually followed, and the one every manual of moral theology gives. Tell him you are scrupulous. Then do what he says, especially when he tells you not to confess something, and treat his judgment as God's own answer to you. Ignatius wrote that the scrupulous soul must act directly *against* the scruple.

  Spiritual Exercises 345–351

- **Do not repeat confessions.** If you confessed it, it is forgiven. If you forgot it, it is forgiven. If you phrased it badly, it is forgiven. Confess what is new, once.
- **Do not confess doubtful sins as certain,** and do not confess the same doubt twice. If you must mention a doubt, say "I am not sure whether," and let the confessor decide. He will usually tell you to leave it.

- **Go to communion.** The law keeps you away only if you are *conscious* of grave sin. Doubt is not consciousness. Most confessors will tell a scrupulous penitent to receive unless they are as certain of a grave sin as they are of their own name.
- **See a clinician.** Persistent scrupulosity is well recognised as a form of obsessive-compulsive disorder and responds to treatment. Seeking it is not a lack of faith; it is the same prudence that sends you to a doctor for anything else. A good confessor will likely ask you to.
- **Stop asking lawyers.** We can tell you what the law says, and I have. We cannot tell you what you knew or willed, and we should not try. Neither should an internet forum.

One last word. The Church's law exists for the salvation of souls; its final canon says so. A reading of it that has you avoiding the sacraments, dreading the confessional, and shrinking from a God who is watching for your mistakes is not a strict reading of the law. It is a wrong one. The law, read rightly, has been trying to tell you to rest. c. 1752

KEY TEXTS

- **c. 988** Confess grave sins you know of after diligent examination; venial sins recommended.
- **c. 916** Only one *conscious* of grave sin is kept from communion.
- **c. 980** Absolution not to be refused or deferred.
- **c. 991** Your free choice of confessor.
- **c. 14** A doubtful law does not bind.
- **CCC 1456** Forgotten sins are forgiven.
- **CCC 1735, 1862, 2352** What lessens imputability; grave matter without full consent is venial.
- **Trent VI, ch. 9** No certainty about your own state; no doubting God's mercy or the sacraments.
- **Ignatius, Sp. Ex. 345–351** Act against the scruple.

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